

← ↻ ☆ AI Studio chat data is not purged from backend after Drive file deletion

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Comments (18) Dependencies (0) Duplicates (0) Blocking (0) Resources (37)

Obsolete Bug P2 + Add Hotlist

 STATUS UPDATE No update yet.

 DESCRIPTION György Istókovich created issue #1 Sep 5, 2026 07:18AM ⋮

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Description

Google AI Studio "Delete" function fails to execute server-side data purging (GDPR Article 17 Violation).When a user triggers the "Delete" command on a prompt/chat session within the Google AI Studio user interface and subsequently empties the Google Drive Trash, the underlying personal data (prompts, conversation context, token history) is not destroyed on the backend systems (Interactions API / Project Storage).Instead, the UI merely performs a client-side disconnection by moving the front-end metadata pointer (.json file) to the Google Drive Trash. The actual conversation state remains fully active and cached on Google's persistent servers.This architecture creates a dangerous "Placebo UI" that misleads users into believing their data has been permanently erased, while Google illegally retains the data on the backend. This behavior directly contradicts the official Interactions API specification (SKILL.md), which guarantees a 1-day Time-To-Live (TTL) auto-purge for Free Tier interactions. Forensic testing proves that data remains fully retrievable even after several weeks.

Code

N/A - This is a structural cloud architecture and data lifecycle management defect. The client-side UI calls Drive.trash(file_id) but fails to send a cascading 'DELETE' or 'DROP' transaction to the Interactions API backend databases linked to the specific 'interaction_id'. In a normal system, if you throw away the shortcut, it should automatically notify the central server: "Hey, the user has deleted this chat, destroy the conversation from the server as well!". This is what is called a cascade delete.

Output

Expected Output: Upon permanent deletion of the JSON pointer and emptying the trash, the server-side session should be hard-deleted. If the JSON metadata file is artificially restored via the Google Drive File Recovery tool, opening it in AI Studio should return a "404 Not Found" or a corrupted state error, confirming the backend data no longer exists.

Actual Output: Restoring the deleted JSON pointer file via the official Google Drive File Recovery tool and clicking it immediately reloads the live, operational chat session in AI Studio. 100% of the conversation memory, prompt contexts, and token histories are instantly pulled down from Google's backend servers, demonstrating that the data was never purged.

Steps

Reporter

 istokovicsgyorgy79@gmail.com

Type

 Bug

Priority

P2

Severity

S3

Status

Won't fix (Obsolete)

Access

Default access View

Expanded Access

?

Assignee

Verifier

Collaborators

 _____ ^

CC

 istokovicsgyorgy79@gmail.com
Un-CC me

Code Changes

--

Pending Code Changes

--

isActionable

1

isDeveloperIssue

1

isEnglish

1

isRelatedToUserOfAI

1

qualityScore

10

status

processed

Open Google AI Studio and create a multi-turn chat session with highly specific prompt contents. Click the "Delete" button on the prompt/chat within the AI Studio user interface. Go to Google Drive, locate the associated .json pointer file in the Trash folder, and select "Empty Trash". Wait a prolonged duration (tested successfully after 5 days, and up to several weeks) to ensure any standard background replication cycles or delayed cleanup queues have elapsed. Deploy the official Google Drive File Recovery tool to resurrect the permanently discarded .json pointer file back into active Drive storage. Open Google AI Studio and click on the restored .json file. Observe that the full conversation, context window, and model states resume instantly from Google's backend servers.

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Evidence links+video:<https://discuss.ai.google.dev/t/google-illegally-retains-customer-data-and-i-am-taking-legal-action-against-them/175294>

<https://discuss.ai.google.dev/t/intentional-corporate-fraud-how-google-lies-with-the-delete-button-in-ai-studio-proven-gdpr-violation/180350>

<https://discuss.ai.google.dev/t/comprehensive-forensic-legal-report-google-ai-studio-google-drive-systematic-data-retention-fraud-gdpr-article-17-violation/180264>

COMMENTS

All comments ↓ Oldest first



György Istókovics <istokovicsgyorgy79@gmail.com> [#2](#) Edit

Sep 5, 2026 07:23AM ⋮

<https://archive.org/details/the-google-ai-studio-delete-function-does-not-execute-data-destruction-when-a-us>



György Istókovics <istokovicsgyorgy79@gmail.com> [#3](#) Edit

Sep 5, 2026 07:31AM ⋮

Related topics and evidentiary videos:

Caught by the Anchor: How Restoring the JSON Exposes Google's Backend Fraud

● Escalation Update: Censorship on Downstream Forums (Level1Techs)

<https://www.youtube.com/watch?v=k6YHhDpnbXk>

<https://youtu.be/LBQfNbPCxQw>

<https://youtu.be/m4U6ajKuLRO>

<https://youtu.be/8Pg-7eNPUWM>

<https://ibb.co/4R9hP1vy>

suggestedComponent

--

tagged

1

Found In

--

Targeted To

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Verified In

--

In Prod

Show 1 additional field

▼

https://ibb.co/gbR1NtqW

https://ibb.co/vCCHMK1f

https://ibb.co/DgTrG7FG

https://web.archive.org/web/20260827061001/https://ibb.co/4R9hP1vy

https://web.archive.org/web/20260827061128/https://ibb.co/gbR1NtqW

https://web.archive.org/web/20260827061233/https://ibb.co/vCCHMK1f

https://web.archive.org/web/20260827061421/https://ibb.co/DgTrG7FG

The Double Deception: Google Lies on the AI Studio UI and Lies on the Drive UI

Forensic screenshots (authenticated timestamp: Aug 27, 2026, 07:59:17 CEST) provide undeniable visual proof that Google presents false statements across both user interfaces:

The Lie on Google Drive: When emptying the trash, Google Drive's explicit dialog box guarantees: "The item will be permanently deleted and CANNOT BE RECOVERED LATER. This action cannot be undone."

The Reality: This statement is factually false. Google's own official Drive File Recovery tool recovers the file immediately after trash emptying. The Lie on Google AI Studio: The AI Studio interface explicitly claims: "Your prompt will be permanently deleted after 30 days."

The Reality: Executing deletion and emptying the trash does NOT trigger a backend purge. The "Delete" button merely hides the client-side JSON pointer. Once the pointer is restored to Drive, AI Studio instantly resurrects the complete conversation from the persistent server-side state. Conclusion: Both user interfaces actively deceive the end user regarding the scope and permanence of data deletion, in direct violation of GDPR Article 17 (Right to Erasure) and consumer transparency laws.



György Istókovichs <istokovicsgyorgy79@gmail.com> [#4](#) [Edit](#)

Sep 5, 2026 07:35AM

<https://archive.org/details/557281747-issue-tracker>



György Istókovichs <istokovicsgyorgy79@gmail.com> [#5](#) [Edit](#)

Sep 5, 2026 07:47AM

This ticket represents a distinct, updated, and legally archived tracking instance. It must not be classified as a duplicate or closed without a verified backend resolution. Be advised that the complete lifecycle of this issue, along with all forensic attachments, has already been permanently preserved in third-party public digital repositories (Internet Archive). Any administrative dismissal or arbitrary closure of this file will be documented in legal proceedings as evidence of non-compliance. The evidentiary chain is locked. Do not close.



György Istókovichs <istokovicsgyorgy79@gmail.com> [#6](#) [Edit](#)

Sep 5, 2026 07:57AM

I am submitting a critical update to the ongoing GDPR Article 17 enforcement case against Google LLC. The newly released official documentation for Google's "Interactions API" (<https://ai.google.dev/gemini-api/docs/interactions-overview>) serves as the final

“Smoking Gun” that perfectly corroborates my forensic findings and proves the deliberate nature of this data fraud.

The documentation exposes three undeniable facts:

The “Stateless” Defense is a Lie: Google officially admits that the system is stateful and stores conversations on the backend by default. Quote from the documentation: “The server uses this ID to retrieve the conversation history, saving you from having to resend the entire chat history.” and “By default, the API stores all Interaction objects (store=true)...” This proves my claim: The Drive JSON file is merely a pointer. The actual data is actively hoarded on Google’s servers.

The AI Studio “Delete” Button is a Documented Fraud: The documentation explicitly claims: “...you can also view and manage stored interactions logs, including deletion from project storage, in AI Studio.” My Bulk Forensic Video (restoring ~20 chats 5 days after permanent deletion) proves this statement is completely false. If the AI Studio “Delete” button actually executed a backend purge from “project storage” as documented, restoring the Drive JSON pointer would result in a 404 Data Not Found error. Instead, all 20 chats instantly resurrected, proving the backend deletion command is NEVER executed by the AI Studio UI.

The Perfect Synergy with the Bugarizer Confession: This API architecture explicitly explains why the Google Security Team (Issue #552682596) closed my ticket as “Intended Behavior” and stated that data “persists on our backend systems.” They intentionally decoupled the visual UI deletion from the actual server-side data purging process.

Conclusion: Google’s own technical documentation, combined with their internal Bugarizer confession and my reproducible forensic video, provides ironclad proof that Google intentionally misleads users and actively bypasses the Right to Erasure (GDPR Article 17).

THE FATAL DOWNFALL Google has completely failed. The chain of evidence is locked. I don’t need any overpriced lawyers, nor do I need a forensic IT expert to prove this. I will crush them in court all by myself. Their overpaid corporate lawyers will stand there babbling and stammering like monkeys when I show the judge exactly how their interface guarantees destruction, while in reality, they systemically hoard and steal the data of millions of users in the background.

This complete evidentiary chain is archived and ready for court.

Sincerely, György Istókovics (Bitu79)

<https://ai.google.dev/gemini-api/docs/interactions-overview>

<https://web.archive.org/web/20260827080748/https://ai.google.dev/gemini-api/docs/interactions-overview>



György Istókovics <istokovicsgyorgy79@gmail.com> [#7](#) [Edit](#)

Sep 5, 2026 08:03AM ⋮

<https://github.com/istokovicsgyorgy79-jpg/CanusLupus/blob/main/557281747%20%20Issue%20Tracker.pdf>



557281747 - Issue Tracker.pdf



408 KB [View](#) [Download](#)



György Istókovics <istokovicsgyorgy79@gmail.com> [#8](#) [Edit](#)

Sep 5, 2026 07:59PM ⋮

Mass Forensic Testing (Restoration of 30 Prompts): I also verified the systemic nature of this mechanism through an extended test recorded on video. I simultaneously deleted 30 individual prompts via the AI Studio user interface, and subsequently, after emptying the Drive Trash, restored the pointer files using the official recovery tool. All 30 chat sessions reloaded immediately from Google's

servers, complete with their full context. This test statistically and technically rules out isolated anomalies and confirms systematic, large-scale server-side data retention.

https://archive.org/details/unknown_2026.09.05-19.30

 unknown_2026.09.05-19.30.mp4



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György Istókovichs <istokovichsgyorgy79@gmail.com> [#9](#) [Edit](#)

Sep 5, 2026 08:19PM 

<https://archive.ph/74nuA>



György Istókovichs <istokovichsgyorgy79@gmail.com> [#10](#) [Edit](#)

Sep 6, 2026 07:21AM 

The restored files retained their original Google Drive identifier (ID). Technically, in the event of an actual deletion (Hard Delete), the original identifier is destroyed in the file system. If this were a genuine data restoration from an archive, the system would have generated a new identifier for the recreated file, and the previous AI Studio links would have become unusable. The fact that files deleted months ago became immediately accessible under their original identifiers is technical proof that Google never deleted them (merely placing them into a hidden 'soft-delete' state), thereby violating the GDPR regulations governing permanent erasure. Because the file ID did not change and the legacy link is live again, this serves as physical proof that, despite my deletion command, Google never purged (hard deleted) the data from its active database, but merely hid it from my sight (soft delete). Google Drive did not destroy the files; it merely rendered them "invisible" on the interface, while they remained in the database the entire time. In the Google Drive file system, every newly created file or file restored from an archived backup is assigned a new, unique identifier. During my test, the file claimed to be permanently deleted preserved its original identifier (1qaEuDIPSJcSUunssQ-KZRdAiL1cdMivg) character-for-character following restoration. This is technical proof that upon emptying the trash, no destruction (Hard Delete) occurred; rather, the database record remained persistent within Google's systems the entire time, with only its surface visibility turned off.

<https://web.archive.org/web/20260906044247/https://d3qe71uytubmmx.cloudfront.net/original/3X/a/2/a2b7d0c6a7959096a2dabcf52e202b8d6c7695be.png>

<https://web.archive.org/web/20260906044429/https://d3qe71uytubmmx.cloudfront.net/original/3X/e/7/e7360145daf66c3177e6df099960ee978c67bf97.png>

<https://ibb.co/mrLB2pFB>

<https://ibb.co/nM0nZHp1>

Accidental deletion" does not override the law: GDPR Article 17 is a mandatory statutory rule. No company can claim, following an explicit deletion command and the emptying of the Trash, that "we retained the data on our servers just in case you deleted it accidentally," while the interface explicitly promises that the data is permanently destroyed and cannot be recovered.

The JSON is not the prompt: My key argument is precisely this: Drive and the recovery robot exclusively handle Drive files (the JSON pointer). The prompt itself, the conversational context, and the token history reside on Google's internal AI backend servers. The fact that the server-side prompt was not destroyed proves that the backend never received a deletion command, regardless of what the user does within the Drive interface.

The core of my submission is precisely that this explanation is legally untenable: protection against accidental deletion cannot be invoked to persistently retain user data in the background.

I demand that Google produce the statutory provision that legitimizes this position, as this is what they cited in IssueTracker—namely, that this behavior is intentional (“Intended Behavior”). If the company cannot prove its legal standing in this regard, then this constitutes unlawful data retention, which is fraud and data theft. The buttons explicitly promise that prompts are permanently and irrecoverably deleted. Google is lying across the board. This is not poor button copy; it is intentional fraud, as proven by me.

<https://web.archive.org/web/20260906050114/https://d3qe71uytubmmx.cloudfront.net/original/3X/7/d/7d922e9e09f045fc11a138e60ec232035ff6ec20.png>

<https://ibb.co/GQh7vjj4>

There is NO statutory exception in the GDPR that explicitly legitimizes a service provider retaining personal data on the backend for “recoverability reasons” following a permanent deletion request.

Article 17(3) of the GDPR itemizes and exhaustively lists the exceptions under which a data controller may refuse or postpone erasure. These are exclusively the following:

For exercising the right of freedom of expression and information; For compliance with a legal obligation (for example, where accounting, tax, or other statutory laws mandate that the company retain the data); For archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes; On grounds of public interest in the area of public health; For the establishment, exercise, or defence of legal claims. What follows from this under the law?

“Convenience recovery” is not a legal exception: Nowhere in the statutory text of the law is there any legal basis stating that “the provider may retain the data after deletion in case the user wishes to restore it later.” The position of regulatory guidance: According to the guidelines of European data protection authorities (EDPB), temporary retention of data within backup systems until the end of a rotation cycle is only permissible if the data is rendered completely inaccessible and, under no circumstances, restored back into live, active production systems. In court, I rely precisely on this statutory absence: Google cannot produce any provision of the GDPR that permits the active backend storage of chat sessions after the issuance of a permanent deletion command and the emptying of the Trash.

<https://archive.ph/P2Bpc>

<https://archive.ph/P2Bpc/image>

 **Képernyőkép 2026-09-06 070031.png** ⋮

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 **Képernyőkép 2026-09-06 063829.png** ⋮

442 KB [View](#) [Download](#) 

 **Képernyőkép 2026-09-06 061730.png** ⋮

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https://web.archive.org/web/20260906184745/https://d3qe71uytubmmx.cloudfront.net/original/3X/e/1/e1bf4dbbaa04f17d340b2be4f802d453e9a418f6.jpeg

https://archive.ph/AttI8

https://archive.ph/AttI8/image

https://web.archive.org/web/20260906185120/https://ai.google.dev/gemini-api/docs/logs-datasets

:one: AI Studio Docs (UI)

https://aistudio.google.com/docs/logs-datasets

This is the documentation for the web interface. This includes the “55 days”, “Drive Trash”, “greyed-out buttons”, and “billing required”.

:two: Gemini API Docs (Backend) https://ai.google.dev/gemini-api/docs/logs-datasets This is the developer API documentation. This includes “store=true”, “1-day Free Tier”, and the “Interactions API”.

:one: AI Studio docs (UI): This documentation and the interface make the user believe that if they empty the Drive Trash, the data is permanently destroyed. I proved with the File Recovery bot that this “Delete” button actually only throws away the JSON file (the pointer); it doesn’t even touch the server.

:two: Gemini API docs (Backend - The “Reality”): This is the hardcore server side, the Interactions API. Here they state in black and white the store=true parameter (meaning that by default they save everything on the server), and here they promise that the data of free (Free Tier) users is automatically deleted by the system after 1 day.

In my video evidence, 5 days passed since the deletion! If API documentation number 2 were telling the truth, and the system actually cleaned up the data of free accounts after 1 day, then my JSON files restored on the 5th day would have just thrown a “404 Not Found” error message. But that is not what happened: the chat loaded completely intact.

They lie on the UI (1st doc): They say emptying the Trash is permanent, but I proved that the backend data remains intact. They lie on the Backend API (2nd doc): They say everything is automatically deleted for free accounts after 1 day, but even after 5 days, I brought back the data in its entirety.

 **screenshot-aistudio-google-docs-logs-datasets-2026-09-06-20_45_00.png** ⋮

927 KB [View](#) [Download](#) 



bl...@google.com <bl...@google.com> [#12](#)

Sep 7, 2026 03:12PM ⋮

Assigned to vi...@google.com.

Automated by Blunderbuss job workspace-devrel-public-issue-tracker-blunderbuss-autoassigner for config shared_rate_limited_assign for component 350158.



vi...@google.com <vi...@google.com> [#13](#)

Sep 7, 2026 09:55PM ⋮

Status: Won't Fix (Obsolete).

Closing this issue as it does not appear to be related to Google Workspace APIs.



Formal Objection: Procedural Contradiction, Pretextual Closure, and Spoliation of Audit Records ([Issue 557281747](#))

Re: [Comment #13](#) by [vi...@google.com](#)

This closure is a flagrant procedural and logical contradiction that constitutes an open admission of bad-faith corporate evasion.

According to standard software engineering and legal compliance workflows, jurisdictional and component verification must strictly precede any substantive review. If this ticket were genuinely "not related to Google Workspace APIs" or lodged in the wrong component, it should have been redirected immediately without dynamic modification.

Instead, the official system logs document the following irrefutable, chronological facts:

1.

Substantive Review Preceded the Jurisdictional Disclaimer (18:34 UTC):

Google accepted the report, officially assigned it to an engineer, and at 18:34 actively conducted a substantive technical evaluation, *altering its parameters and downgrading the Severity from S2 to S3*. Modifying the severity level is an explicit technical determination. An engineering team cannot evaluate and alter the severity of a defect over which it claims to have no jurisdiction.

2.

Abrupt Reversal and Pretextual Dismissal (21:55 UTC):

Just 3 hours and 21 minutes later, Google executed an abrupt reversal, closing the ticket as "Obsolete" under the pretext of an incorrect component. An engineering team cannot substantively evaluate a bug, recalibrate its severity, and then claim a lack of jurisdiction three hours later.

3.

The "Obsolete" Classification is Factually False:

The reported defect—server-side data retention in Google AI Studio / Gemini following permanent deletion and trash emptying—affects active, flagship production systems. Designating an active, reproducible compliance failure on live systems as "Obsolete" is technically absurd and represents an arbitrary administrative maneuver to force-close the ticket.

4.

Direct Contradiction with Parallel Validated Tickets:

This administrative manipulation is further exposed by the fact that the

exact same data-purging defect is officially validated, reproduced, and marked as *TRIAGED* by Google's vulnerability teams under Issue 552682596. Attempting to dismiss the exact same defect here as an "Obsolete" component mismatch demonstrates severe internal bad faith.

This dynamic pretextual dismissal and the chronological contradiction between the substantive severity downgrade and the abrupt closure have been permanently locked into the evidentiary chain. These records will be submitted directly to NOYB, the European Data Protection Authorities (DPC/NAIH), and the competent court under GDPR Article 79 as physical evidence of intentional non-compliance and procedural evasion.

The evidentiary chain is locked. This ticket remains an active exhibit of bad-faith tracking spoliation.

<buganizer-system@google.com> ezt írta (időpont: 2026. szept. 7., H, 21:55):

- [Show quoted text](#) -



György Istókovichs <istokovicsgyorgy79@gmail.com> [#15](#) [Edit](#)

Sep 8, 2026 05:27AM ⋮

Addendum: Procedural Bad Faith — External Reporters Cannot Be Burdened with Google's Internal Component Taxonomy

Dismissing a documented compliance failure because an external user allegedly filed under the "wrong component" is procedurally absurd and legally untenable.

1. External Users Are Not Google Employees:

External researchers, developers, and citizens reporting GDPR Article 17 violations are not internal Google personnel. It is not the reporter's responsibility to possess insider knowledge of Google's fragmented, opaque

internal organizational silos or arbitrary component hierarchies.

2. The Duty of Intake and Internal Routing Rests with the Controller:

Google operates the public IssueTracker. When a severe defect is reported regarding an active Google product (AI Studio / Gemini), the legal and professional obligation to route the ticket to the appropriate internal engineering team rests entirely upon Google LLC as the Data Controller.

3. A Pattern of Institutional Obstruction:

Expecting external users to guess internal filing codes—while simultaneously failing to provide a dedicated public Gemini category, and stating across

Cloud Support (Ticket 75129297) that staff "have no capability to escalate"—demonstrates a coordinated corporate strategy to deflect

compliance defects by exploiting artificial administrative boundaries.

A public reporter's obligation ends at providing reproducible technical evidence. The controller's obligation begins at proper intake and internal routing. Hiding behind component codes to evade GDPR Article 17 accountability is documented bad faith.

György Istókovics <istokovicsgyorgy79@gmail.com> ezt írta (időpont: 2026. szept. 8., K, 5:14):

- Show quoted text -

 **Gmail - Re_ Google Cloud Support 75129297_ GCP Account and Resource Recovery Request.pdf** 

126 KB [View](#) [Download](#) 



György Istókovics <istokovicsgyorgy79@gmail.com> [#16](#) [Edit](#)

Sep 8, 2026 05:32AM 

Formal Notice: Unified Controller Liability — Systemic Evasion Across Corporate Silos Proves Absence of Human Review (GDPR Articles 5(2), 12, and 22)

The coordinated pattern of administrative dismissals across Google's various intake channels demonstrates an institutionalized failure to maintain lawful compliance mechanisms:

1.

Google is a Single, Indivisible Data Controller:

Under European Union law (GDPR), Google LLC / Google Ireland Ltd. operates as a single, unified Data Controller. The company cannot legally evade statutory accountability by disclaiming competence across fragmented internal silos (Cloud Support, Workspace DevRel, Security VRP, or DPO channels).

2.

The Rigid Pattern of Robotic Deflection:

Every single channel contacted exhibits the exact same automated behavior: declaring the issue "out of scope," disclaiming any capability to route or escalate the defect, and summarily closing the ticket without substantive resolution:

-

IssueTracker (Workspace): „Not related to Workspace APIs"

→

Closed without re-routing.

-

Cloud Support (Ticket 75129297): „Strictly out of scope... no authority or capability to escalate"

→

Closed without re-routing.

-

Security VRP: „Intended Behavior"

→

Closed without remediation.

3.

Evidence of Pure Automation (GDPR Article 22):

This rigid, uncoordinated refusal to handle an active, proven data retention failure on live production systems is the hallmark of scripted, algorithmic queue-clearing. A human engineering or legal apparatus would route a verified defect to the appropriate team; an automated "Robot Wall" simply closes tickets based on rigid component filters.

This cross-departmental record of systematic refusal to intake, route, or substantively review a GDPR Article 17 violation has been permanently archived and will be submitted directly to the competent court under GDPR Article 79 as proof of structural non-compliance.

György Istókovichs <istokovicsgyorgy79@gmail.com> ezt írta (időpont: 2026. szept. 8., K, 5:27):

- Show quoted text -



György Istókovichs <istokovicsgyorgy79@gmail.com> [#17](#) [Edit](#)

Sep 9, 2026 10:12AM ⋮

Legal and Technical Refutation of Google's "Data Retention / Disaster Recovery" Defense Google's anticipated defense—that retaining deleted data in the background is a deliberate safety feature for recoverability—collapses completely when scrutinized under the General Data Protection Regulation (GDPR) and the technical guidelines of the European Data Protection Board (EDPB). I. The Relevant Legal Framework (GDPR)

1. GDPR Article 17(1) – Right to Erasure ('Right to be Forgotten'): "The data subject shall have the right to obtain from the controller the erasure of personal data concerning him or her without undue delay..." Legal Meaning: Erasure cannot merely mean hiding the data or making it invisible on the frontend (Soft Delete). At a technical level, the controller must execute a process that permanently prevents the future restoration and active processing of the data.
2. GDPR Article 5(1)(b) and (e) – Purpose Limitation and Storage Limitation: "Personal data shall be kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed..." Legal Meaning: Once the user terminates the purpose (by explicitly deleting the chat), the data must be completely removed from daily, active production environments. II. Why Google's "Retention" Defense Fails Legally and Technically In internal VRP communications, Google defends this practice by stating it is "Intended Behavior" and that data "persists on our backend" so legitimate owners can recover it. This defense fails on the following three legal-technical grounds:
3. The Lack of Strict Restriction and Isolation (The "Uninterrupted Execution" Paradox) While the GDPR and EDPB guidelines allow a company to temporarily retain deleted data in backup cycles for legitimate security purposes, the law strictly requires that the data must be "Put Beyond Use." The Legal Requirement: During the retention period, the data must sit in a passive, encrypted archive (cold storage). Live production software (like the active Gemini AI model) must not have direct, functional access to it. The Proven Failure: My forensic testing proves that days after emptying the Trash, simply restoring a tiny client-side .json pointer file from Google Drive causes the chat session to resume instantly and seamlessly with the backend server. Quarantined, backed-up data does not respond in milliseconds. This is physical proof that Google never restricted, isolated, or locked the data; they left it in an active, online database ("hot storage"). If the operational link was never severed, from a data protection standpoint, no legal erasure took place.
4. Intentional Deception and Breach of Transparency (GDPR Article 12) GDPR Article 12 mandates concise, transparent, and truthful communication. The software UI must accurately reflect technical reality. The Proven Failure: Google Drive's own Activity Log explicitly confirms to the user: "Permanently deleted an item." Lying about permanent destruction on official system logs while internally admitting that the data is intentionally kept actively accessible in the backend constitutes deliberate misinformation, a Deceptive Design (Dark Pattern), and bad-faith data processing. Google cannot legitimize a deceptive soft-delete as a "security feature" when its own UI officially denies the existence of that very feature.
5. Bypassing the Documented 1-Day TTL Promise The official Gemini API developer documentation explicitly guarantees a 1-day (24-hour) Time-To-Live (TTL) auto-purge mechanism for Free Tier interactions. The Proven Failure: If the technical documentation promises a 1-day destruction cycle, yet their internal systems (evidenced by the 55-day AI Studio setting and the ability to restore live sessions days later) actively retain those sessions, Google is committing a breach of contract and intentional corporate deception. Conclusion: Google is not executing a deletion or a secure backup procedure; they are executing a "Placebo Deletion" designed to unlawfully retain active access to user data on production servers.

 **Exhibit Censored Legal Refutation Proof of Spoliation.pdf.pdf** ⋮

136 KB [View](#) [Download](#) 

 **Képernyőkép 2026-09-09 102934.png** ⋮

273 KB [View](#) [Download](#) 



vi...@google.com <vi...@google.com>

Sep 9, 2026 06:02PM



György Istókovichs <istokovicsgyorgy79@gmail.com> [#18](#) [Edit](#)

Sep 11, 2026 12:26PM ⋮

Re-opening request / Status Dispute: This issue is NOT "Obsolete" – It remains 100% actively reproducible in production today.

Marking this critical data retention issue as Won't Fix (Obsolete) is factually false and contradicts system reality:

1. Zero Architectural Change: The "Delete" function in Google AI Studio still does NOT execute a backend purge. It only disconnects the client-side .json metadata pointer.
2. Reproducible Proof of Non-Deletion: Restoring the .json file via Google Drive / Workspace Recovery instantly restores the entire active chat history from Google's production servers in milliseconds. The data was never isolated, quarantined, or destroyed.
3. Active Regulatory Violation (GDPR Art. 17 & Art. 12): The UI continues to deceive users by stating the prompt is deleted, while the backend actively retains user prompts in hot storage.

Closing an active, reproducible compliance violation as "Obsolete" does not make the defect disappear.

Instead, setting this ticket to Won't Fix (Obsolete) officially establishes an undeniable written record that Google engineering was formally notified of this GDPR Article 17 violation and deliberately refused to remediate it.

This documented refusal is already preserved and submitted as evidence to the Irish Data Protection Commission (DPC), the European Data Protection Supervisor (EDPS), and NOYB.